

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Yu	Team: Squad #3	CCRB Case #: 201806096	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/13/2018 9:31 PM, Friday, 12/14/2018	Location of Incident: § 87(2)(b)	Precinct: 68	18 Mo. SOL 8/13/2019	EO SOL 8/13/2019	
Date/Time CV Reported Fri, 07/27/2018 8:49 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 07/27/2018 8:49 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Louis Vannucci	19072	959330	068 PCT
2. POF Suman Khanna	25658	962524	060 PCT
3. An officer			
4. POM Fernando Caches	11749	945153	068 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brendan Finnigan	22644	963031	068 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Suman Khanna	Abuse: On February 13, 2018, Police Officer Suman Khanna entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)
B.POF Suman Khanna	Abuse: On February 13, 2018, Police Officer Suman Khanna forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
C.POM Louis Vannucci	Abuse: On February 13, 2018, Police Officer Louis Vannucci forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
H. An officer	Discourtesy: On an unknown date, an officer spoke discourteously to § 87(2)(b)	§ 87(2)(b)

Case Summary

On July 27, 2018, § 87(2)(b) filed this complaint with the CCRB via the automated voicemail system. This case was reassigned to SI Patrick Yu on September 6, 2018.

On February 13, 2018, at approximately 9:30 p.m., PO Suman Khanna and PO Louis Vannucci of the 60th Precinct responded to § 87(2)(b)'s residence located at § 87(2)(b) in Brooklyn. PO Khanna entered § 87(2)(b)'s residence (**Allegation A: Abuse of Authority, § 87(2)(g)**). During the incident, PO Khanna and PO Vannucci removed § 87(2)(b) to the hospital (**Allegation B: Abuse of Authority, § 87(2)(g)**). **Allegation C: Abuse of Authority, § 87(2)(g)**

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

On an unknown date, an officer said, "Do you want me to push your ass inside? (**Allegation H: Discourtesy, § 87(2)(g)**)".

There is no video footage pertaining to this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: On February 13, 2018, Police Officer Suman Khanna entered § 87(2)(b), in Brooklyn.

It is undisputed that § 87(2)(b) called 311 and 911 numerous times to complain about his neighbors making noises. In his CCRB testimony, § 87(2)(b) stated that when officers arrived at his residence on numerous occasions, and on February 13, 2018, officers would place their foot against his door, enter his residence, and then use a device to check for hidden cameras (Board Review 01).

In her CCRB testimony, PO Khanna stated that the calls generally came over as "other crime in progress" (10-39) and it would be marked as a noise complaint (Board Review 02). PO Khanna stated that on February 13, 2018, the call came over as a 10-39, but she did not recall if there was any additional information. Upon arriving at the location, PO Khanna stated that PO Caches and his partner, identified via the investigation as PO Finnigan, were on the scene. Upon going up to § 87(2)(b)'s apartment, PO Khanna did not hear any noises emanating from inside. § 87(2)(b) opened the door after approximately two or three minutes after the officers rang his doorbell. PO Khanna stated that there was no significant delay because § 87(2)(b) walked at a slow pace. PO Khanna asked § 87(2)(b) if he was okay and § 87(2)(b) said that he was okay. PO Khanna asked § 87(2)(b) to open the door wider to see if he was okay and § 87(2)(b) complied. PO Khanna did not know if § 87(2)(b) appeared to be in distress, but § 87(2)(b) did not appear to be injured. She did not recall if § 87(2)(b) said anything else, but she denied asking him any additional questions. PO Khanna did not recall where § 87(2)(b) stood when he opened the door wider, but PO Khanna immediately walked inside his

residence. During the interview, when asked why she entered, PO Khanna said, “We have to go inside and check.” PO Khanna stated that she wanted to ensure that § 87(2)(b) was okay and that there was no one inside trying to hurt him. PO Khanna did not recall if she asked § 87(2)(b) for consent. PO Khanna stated that there was nothing that led her to believe that § 87(2)(b) was not safe inside his apartment. § 87(2)(b) walked further into the apartment and PO Khanna followed him into the living room. From the living room, PO Khanna saw that there was no one inside his residence.

PO Vannucci, PO Caches, and PO Finnigan did not have an independent recollection of this specific incident, but they were familiar with the location and § 87(2)(b) (Board Review 03-05). PO Khanna did not know if PO Vannucci entered § 87(2)(b)'s residence on February 13, 2018, and PO Vannucci did not recall if he entered § 87(2)(b)'s residence.

PO Caches and PO Finnigan both stated that they entered § 87(2)(b)'s residence in the past upon § 87(2)(b) inviting them inside (Board Review 04 and 05). However, neither PO Caches nor PO Finnigan recalled if they entered on February 13, 2018.

EVENT #§ 87(2)(b) indicated that the call came over as an “ambulance case-EDP inside” (10-54E1) (Board Review 18). § 87(2)(b) called 911 § 87(2)(b). According to the 311 log, NYPD Chronic report, and SPIA all showed that § 87(2)(b) called 311 and 911 over 20 times in the month of February (Board Review 06, 07, and 11). The 311-log indicated that on February 13, 2018, § 87(2)(b) called 311 at 9:11 p.m., and stated that a psychopath neighbor is stomping on the floor, there are hidden cameras inside his apartment, “noise,” and sleep deprivation causes back pain.

Police officers are permitted to enter a premises without a warrant if they reasonably believe that there is an emergency and immediate need for their assistance for the protection of life or property, People v. Greenleaf, 634 N.Y.S.2d 892 (1995) (Board Review 20).

According to People v. Mitchell, 39 N.Y.2d 173 (1976) (Board Review 22), officers may lawfully make warrantless entry into a location if 1) they have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property; 2) the search is not primarily motivated by intent to arrest or seize evidence; and 3) there is some reasonable basis, approximating probable cause, to associate the emergency with the place to be searched. In Brigham City v. Stuart, 547 U.S.398 (2006) (Board Review 23), the U.S. Supreme Court struck down the second prong of Mitchell and held that it is lawful for officers to make a warrantless entry if only the first and third requirements in Mitchell are satisfied. In People v. Scott, 133 A.D.3d 794 (2015) (Board Review 24), the Court of Appeals of New York upheld the ruling in Brigham City without addressing the second prong of Mitchell.

§ 87(2)(g)
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Allegation (B) Abuse of Authority: On February 13, 2018, Police Officer Suman Khanna forcibly removed § 87(2)(b) to the hospital.

Allegation (C) Abuse of Authority: On February 13, 2018, Police Officer Louis Vannucci forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) stated that the officers responded to his residence several times and at times he would be removed to a hospital, including the incident on February 13, 2018.

As noted above, aside from PO Khanna, the other three officers did not have an independent recollection of this incident.

PO Khanna stated that after she determined that there was nothing happening inside of § 87(2)(b)'s residence, she returned to the hallway and she heard PO Vannucci ask § 87(2)(b) "You want to go to the hospital" (Board Review 02). PO Khanna did not recall if PO Vannucci said anything to § 87(2)(b) prior to this. PO Khanna did not recall § 87(2)(b)'s response, but he complied by putting his jacket and shoes on. PO Khanna did not recall if § 87(2)(b) began putting on his clothes before or after PO Vannucci asked if he wanted to go to the hospital. PO Khanna stated that PO Vannucci informed her that § 87(2)(b) had a medical history, but PO Khanna did not recall the specifics. PO Khanna's memo book noted, "Not 39. EDP no weapon not violent" (Board Review 08).

PO Vannucci stated that during his previous interactions with § 87(2)(b) he believed that § 87(2)(b) was paranoid because he said that people were watching him through the screws of the television (Board Review 09). PO Vannucci was not aware of § 87(2)(b)'s medical history. § 87(2)(b) was taken to the hospital for a psychiatric evaluation in the past, but PO Vannucci denied ever making the determination that § 87(2)(b) was an EDP. From the past interactions, PO Vannucci believed that § 87(2)(b) could potentially harm other occupants in the building if he became agitated.

PO Caches stated during the past interactions, § 87(2)(b) was calm, but he would say that he hears noises, hears banging on pipes, and that his neighbors were hacking his phone (Board Review 04). PO Caches was informed by § 87(2)(b)'s mother that § 87(2)(b) suffered from depression and that he would hear voices. At times, an ambulance would be called and EMS would make a determination on whether § 87(2)(b) goes to the hospital (Board Review 10). PO Caches stated that he believes a person could harm themselves when they hear voices and talk to themselves.

In his CCRB statement, PO Finnigan stated that § 87(2)(b) appeared to be panicky and worried during the past interactions because he would not keep the door opened long enough for the officers to obtain his information (Board Review 05). PO Finnigan stated that § 87(2)(b) did not behave normally because he would say that people were installing cameras in his television and say that people were hacking his phone which led him to believe that § 87(2)(b)

§ 87(2)(b) could harm himself or others. PO Finnigan recalled that an ambulance arrived during one incident because § 87(2)(b) was not making any sense so he was going to be evaluated. As noted above, the EVENT regarding this incident was an ambulance case (EDP inside) and § 87(2)(b) was removed to the hospital (Board Review 18). It was indicated that § 87(2)(b) was transported to the § 87(2)(b).

As noted above, the 311 log, NYPD Chronic report, and SPIA all showed that § 87(2)(b) called 311 and 911 over 20 times in the month of February (Board Review 06, 07, and 11).

Medical Records obtained from FDNY and § 87(2)(b) did not include § 87(2)(b)'s medical records from February 13, 2018 (Privileged).

§ 87(2)(g)
[Redacted text block]

§ 87(4-b), § 87(2)(g)
[Redacted text block]

[Redacted text block]

[Redacted text block]

§ 87(4-b), § 87(2)(g)

Allegation (H) Discourtesy: On an unknown date, an officer spoke discourteously to § 87(2)(b)

In his CCRB statement, § 87(2)(b) stated that an officer asked him, “Do you want me to push your ass inside” as he was entering the ambulance (Board Review 01). § 87(2)(b) did not recall when this occurred, but he stated that one of the male officers who responded on February 13, 2018, stated this.

PO Khanna, PO Vannucci, PO Caches, and PO Finnigan all denied hearing any officers ask § 87(2)(b) “Do you want me to push your ass inside” (Board Review 02-05). PO Khanna stated that there were no difficulties with getting § 87(2)(b) inside the ambulance. Moreover, PO Vannucci, PO Caches, and PO Finnigan denied asking § 87(2)(b) “Do you want me to push your ass inside?”

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to five CCRB complaints and has been named a victim in 21 allegations (Board Review 17).

- § 87(2)(b)

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

- PO Khanna has been a member of service for two years and this is the first CCRB complaint to which she has been a subject.
- PO Vannucci has been a member of service for three years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated. [REDACTED]

§ 87(2)(g) [REDACTED]

- PO Caches has been a member of service for 11 years and has been a subject in three CCRB complaints and 14 allegations, none of which were substantiated. § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- On September 10, 2018, § 87(2)(b) [REDACTED] declined to mediate all his complaints.
- As of May 4, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 19).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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